Fort Bend County District Court

Cause No. 2024-CV-0006

Colin Bell, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 15, 2024
Plaintiff's counsel:	James Moody, Marshall & Dominguez LLP

PARTIES

Plaintiff Colin Bell is an individual residing in Houston, Texas, who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the policy of insurance under which Plaintiff seeks benefits and which is responsible for the claims made in this action.

FACTS

On June 25, 2023, Plaintiff was lawfully operating a motor vehicle on a public roadway in Houston, Texas. Plaintiff was traveling through an intersection and had the right of way. Another driver, insured under a policy issued by Defendant, attempted to make a left turn across Plaintiff's lane of travel without yielding and struck Plaintiff's vehicle broadside. The impact was forceful, and Plaintiff's head struck the inteiror of the vehicle. Police responded to the scene and documented the collision. Plaintiff promptly reported the accident and the resulting injuries to Defendant and submitted a claim under the applicable coverage.

NEGLIGENCE

The at-fault driver owed a duty to other motorists to exercise ordinary care when turning left, including keeping a proper lookout, yielding the right of way to oncoming traffic, and refraining from turning until it could be done safely. The at-fault driver breached that duty by turning in front of Plaintiff's oncoming vehicle. This negligence was the proximate cause of the collision and of Plaintiff's injuries. Defendant, as the insurer of the at-fault driver, is liable for damages within the limits of that coverage and, as to Plaintiff's own underinsured or uninsured motorist coverage where applicable, is obligated to pay the benefits owed under its policy and Texas law. Defendant has failed to fairly settle the claim despite liability being reasonably clear.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion, with headaches, dizziness, memory difficulties, and sensitivity to light. Plaintiff has incurred medical expenses for emergency care, diagnostic imaging, and ongoing treatment, and will likely require further care. Plaintiff has lost wages and earning capacity due to missed work and has suffered physical pain, mental anguish, and diminished quality of life. Plaintiff therefore seeks actual damages in an amount to be prvoen at trial, together with prejudgment and postjudgment interest and court costs, in a total sum of $77,000.00.